

Supreme Emergency

The Nature of Necessity (3)

Everyone's troubles make a crisis. "Emergency" and "crisis" are cant words, used to prepare our minds for acts of brutality. And yet there are such things as critical moments in the lives of men and women and in the history of states. Certainly, war is such a time: every war is an emergency, every battle a possible turning point. Fear and hysteria are always latent in combat, often real, and they press us toward fearful measures and criminal behavior. The war convention is a bar to such measures, not always effective, but there nevertheless. In principle at least, as we have seen, it resists the ordinary crises of military life. Churchill's description of Britain's predicament in 1939 as a "supreme emergency" was a piece of rhetorical heightening designed to overcome that resistance. But the phrase also contains an argument: that there is a fear beyond the ordinary fearfulness (and the frantic opportunism) of war, and a danger to which that fear corresponds, and that this fear and danger may well require exactly those measures that the war convention bars. Now, a great deal is at stake here, both for the men and women driven to adopt such measures and for their victims, so we must attend carefully to the implicit argument of "supreme emergency."

Though its use is often ideological, the meaning of the phrase is a matter of common sense. It is defined by two criteria, which correspond to the two levels on which the concept of necessity works: the first has to do with the imminence of the danger and the second with its nature. The two criteria must both be applied. Neither one by itself is sufficient as an account of extremity or as a defense of the extraordinary measures extremity is thought to require. Close but not serious, serious but not close—neither one makes for a supreme emergency. But since people at war can rarely agree on the seriousness of the dangers they face (or pose for one another), the idea of closeness is sometimes made to do the job alone. Then we are offered what might best be called the back-to-the-wall argument: that when conventional means of resistance are hopeless or worn out, anything goes (anything that is “necessary” to win). Thus British Prime Minister Stanley Baldwin, writing in 1932 about the dangers of terror bombing:¹

Will any form of prohibition of bombing, whether by convention, treaty, agreement, or anything you like, be effective in war? Frankly, I doubt it, and in doubting it, I make no reflection on the good faith of either ourselves or any other country. If a man has a potential weapon and has his back to the wall and is going to be killed, he will use that weapon, whatever it is and whatever undertaking he has given about it.

The first thing that has to be said about this statement is that Baldwin does not mean his domestic analogy to be applied literally. Soldiers and statesmen commonly say that their backs are to the wall whenever military defeat seems imminent, and Baldwin is endorsing this view of extremity. The analogy is from survival at home to victory in the international sphere. Baldwin claims that people will necessarily (inevitably) adopt extreme measures if such measures are necessary (essential) either to escape death or to avoid military defeat. But the argument is wrong at both ends. It is simply not the case that individuals will always strike out at innocent men and women rather than accept risks for themselves. We even say, very often, that it is their duty to accept risks (and perhaps to die); and here as in moral life generally, “ought” implies “can.” We make the demand knowing that it is possible for people to live up to it. Can we make the same demand on political leaders, acting not for themselves but for their countrymen? That will depend upon the dangers their countrymen face. What is it that defeat entails? Is it some minor territorial adjustment, a loss of face (for the leaders), the payment of heavy indemnities, political

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reconstruction of this or that sort, the surrender of national independence, the exile or murder of millions of people? In such cases, one's back is always to the wall, but the dangers one confronts take very different forms, and the different forms make a difference.

If we are to adopt or defend the adoption of extreme measures, the danger must be of an unusual and horrifying kind. Such descriptions, I suppose, are common enough in time of war. One's enemies are often thought to be—at least they are often said to be—unusual and horrifying.² Soldiers are encouraged to fight fiercely if they believe that they are fighting for the survival of their country and their families, that freedom, justice, civilization itself are at risk. But this sort of thing is only sometimes plausible to the detached observer, and one suspects that its propagandistic character is also understood by many of the participants. War is not always a struggle over ultimate values, where the victory of one side would be a human disaster for the other. It is necessary to be skeptical about such matters, to cultivate a wary disbelief of war-time rhetoric, and then to search for some touchstone against which arguments about extremity might be judged. We need to make a map of human crises and to mark off the regions of desperation and disaster. These and only these constitute the realm of necessity, truly understood. Once again, I am going to use the experience of World War II in Europe to suggest at least the rough contours of the map. For Nazism lies at the outer limits of exigency, at a point where we are likely to find ourselves united in fear and abhorrence.

That is what I am going to assume, at any rate, on behalf of all those people who believed at the time and still believe a third of a century later that Nazism was an ultimate threat to everything decent in our lives, an ideology and a practice of domination so murderous, so degrading even to those who might survive, that the consequences of its final victory were literally beyond calculation, immeasurably awful. We see it—and I don't use the phrase lightly—as evil objectified in the world, and in a form so potent and apparent that there could never have been anything to do but fight against it. I obviously cannot offer an account of Nazism in these pages. But such an account is hardly necessary. It is enough to point to the historical experience of Nazi rule. Here was a threat to human values so radical that its imminence would surely constitute a supreme emergency; and this example can help us understand why lesser threats might not do so.

In order to get the map right, however, we must imagine a Nazi-

like danger somewhat different from the one the Nazis actually posed. When Churchill said that a German victory in World War II "would be fatal, not only to ourselves, but to the independent life of every small country in Europe," he was speaking the exact truth. The danger was a general one. But suppose it had existed for Britain alone. Can a supreme emergency be constituted by a particular threat—by a threat of enslavement or extermination directed against a single nation? Can soldiers and statesmen override the rights of innocent people for the sake of their own political community? I am inclined to answer this question affirmatively, though not without hesitation and worry. What choice do they have? They might sacrifice themselves in order to uphold the moral law, but they cannot sacrifice their countrymen. Faced with some ultimate horror, their options exhausted, they will do what they must to save their own people. That is not to say that their decision is inevitable (I have no way of knowing that), but the sense of obligation and of moral urgency they are likely to feel at such a time is so overwhelming that a different outcome is hard to imagine.

Still, the question is difficult, as its domestic analogue suggests. Despite Baldwin, it is not usually said of individuals in domestic society that they necessarily will or that they morally can strike out at innocent people, even in the supreme emergency of self-defense.³ They can only attack their attackers. But communities, in emergencies, seem to have different and larger prerogatives. I am not sure that I can account for the difference, without ascribing to communal life a kind of transcendence that I don't believe it to have. Perhaps it is only a matter of arithmetic: individuals cannot kill other individuals to save themselves, but to save a nation we can violate the rights of a determinate but smaller number of people. But then large nations and small ones would have different entitlements in such cases, and I doubt very much that that is true. We might better say that it is possible to live in a world where individuals are sometimes murdered, but a world where entire peoples are enslaved or massacred is literally unbearable. For the survival and freedom of political communities—whose members share a way of life, developed by their ancestors, to be passed on to their children—are the highest values of international society. Nazism challenged these values on a grand scale, but challenges more narrowly conceived, *if they are of the same kind*, have similar moral consequences. They bring us under the rule of necessity (and necessity knows no rules).

I want to stress again, however, that the mere recognition of

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such a threat is not itself coercive; it neither compels nor permits attacks on the innocent, so long as other means of fighting and winning are available. Danger makes only half the argument; imminence makes the other half. Now let us consider a time when the two halves came together: the terrible two years that followed the defeat of France, from the summer of 1940 to the summer of 1942, when Hitler's armies were everywhere triumphant.

Overriding the Rules of War

The Decision to Bomb German Cities

There have been few decisions more important than this one in the history of warfare. As a direct result of the adoption of a policy of terror bombing by the leaders of Britain, some 300,000 Germans, most of them civilians, were killed and another 780,000 seriously injured. No doubt, these figures are low when compared to the results of Nazi genocide; but they were, after all, the work of men and women at war with Nazism, who hated everything it stood for and who were not supposed to imitate its effects, even at lagging rates. And the British policy had further consequences: it was the crucial precedent for the fire-bombing of Tokyo and other Japanese cities and then for Harry Truman's decision to drop atomic bombs on Hiroshima and Nagasaki. The civilian death toll from Allied terrorism in World War II must have exceeded half a million men, women, and children. How could the initial choice of this ultimate weapon ever have been defended?

The history is a complex one, and it has already been the subject of several monographic analyses.⁴ I can review it only briefly, attending especially to the arguments put forward at the time by Churchill and other British leaders, and always remembering what sort of a time it was. The decision to bomb cities was made late in 1940. A directive issued in June of that year had "specifically laid down that targets had to be identified and aimed at. Indiscriminate bombing was forbidden." In November, after the German raid on Coventry, "Bomber Command was instructed simply to aim at the center of a city." What had once been called indiscriminate bombing (and commonly condemned) was now required, and by early 1942, aiming at military or industrial targets was

barred: "the aiming points are to be the built-up areas, *not*, for instance, the dockyards or aircraft factories."⁵ The purpose of the raids was explicitly declared to be the destruction of civilian morale. Following the famous minute of Lord Cherwell in 1942, the means to this demoralization were specified: working-class residential areas were the prime targets. Cherwell thought it possible to render a third of the German population homeless by 1943.⁶

Before Cherwell provided his "scientific" rationale for the bombing, a number of reasons had already been offered for the British decision. From the beginning, the attacks were defended as reprisals for the German blitz. This is a very problematic defense, even if we leave aside the difficulties of the doctrine of reprisals (which I have already canvassed). First of all, it appears possible, as one scholar has recently argued, that Churchill deliberately provoked the German attacks on London—by bombing Berlin—in order to relieve pressure on R.A.F. installations, until then the major *Luftwaffe* target.⁷ Nor was it Churchill's purpose, once the blitz began, to deter the German attacks or to establish a policy of mutual restraint.⁸

We ask no favor of the enemy. We seek from them no compunction. On the contrary, if tonight the people of London were asked to cast their votes whether a convention should be entered into to stop the bombing of all cities, the overwhelming majority would cry, "No, we will mete out to the Germans the measure, and more than the measure, that they have meted out to us."

Needless to say, the people of London were not in fact asked to vote on such a convention. Churchill assumed that the bombing of German cities was necessary to their morale and that they wanted to hear (what he told them in a radio broadcast of 1941) that the British air force was making "the German people taste and gulp each month a sharper dose of the miseries they have showered upon mankind."⁹ This argument has been accepted by many historians: there was "a popular clamor" for revenge, one of them writes, which Churchill had to satisfy if he was to maintain a fighting spirit among his own people. It is especially interesting to note, then, that a 1941 opinion poll showed that "the most determined demand for [reprisal raids] came from Cumberland, Westmoreland, and the North Riding of Yorkshire, rural areas barely touched by bombing, where some three-quarters of the population wanted them. In central London, conversely, the proportion was only 45 percent."¹⁰ Men and women who had experienced terror bombing

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were less likely to support Churchill's policy than those who had not—a heartening statistic, and one which suggests that the morale of the British people (or perhaps better, their conventional morality) allowed for political leadership of a different sort than Churchill provided. The news that Germany was being bombed was certainly glad tidings in Britain; but as late as 1944, according to other opinion surveys, the overwhelming majority of Britishers still believed that the raids were directed solely against military targets. Presumably, that is what they wanted to believe; there was by then quite a bit of evidence to the contrary. But that says something, again, about the character of British morale. (It should also be said that the campaign against terror bombing, run largely by pacifists, attracted very little popular support.)

Reprisal was a bad argument; revenge was a worse one. We must concentrate now on the military justifications for terror bombing, which were presumably paramount in Churchill's mind, whatever he said on the radio. I can discuss these only in a general way. There was a great deal of dispute at the time, some of it technical, some of it moral in character. The calculations of the Cherwell minute, for example, were sharply attacked by a group of scientists whose opposition to terrorism may well have had moral grounds, but whose position, to the best of my knowledge, was never stated in moral terms.¹¹ Explicit moral disagreement developed most importantly among the professional soldiers involved in the decision-making process. These disagreements are described, in characteristic fashion, by a strategic analyst and historian who has studied the British escalation: "The . . . debate had been beclouded by emotion on one side of the argument, on the part of those who as a matter of moral principle objected to making war on civilians."¹² The focus of these objections seems to have been some version of the doctrine of double effect. (The arguments had, to the mind of the strategic analyst, "a curiously scholastic flavor.") At the height of the blitz, many British officers still felt strongly that their own air attacks should be aimed only at military targets and that positive efforts should be made to minimize civilian casualties. They did not want to imitate Hitler, but to differentiate themselves from him. Even officers who accepted the desirability of killing civilians still sought to maintain their professional honor: such deaths, they insisted, were desirable "only insofar as [they] remained a by-product of the primary intention to hit a military target . . ."¹³ A tendentious argument, no doubt, yet one that

would drastically have limited the British offensive against cities. But all such proposals ran up against the operational limits of the bomber technology then available.

Early in the war, it became clear that British bombers could fly effectively only at night and, given the navigational devices with which they were equipped, that they could reasonably aim at no target smaller than a fairly large city. A study made in 1941 indicated that of those planes that actually succeeded in attacking their target (about two-thirds of the attacking force), only one-third dropped their bombs within five miles of the point aimed at.¹⁴ Once this was known, it would seem dishonest to claim that the intended target was, say, this aircraft factory and that the indiscriminate destruction around it was only an unintended, if foreseeable, consequence of the justified attempt to stop the production of planes. What was really unintended but foreseeable was that the factory itself would probably escape harm. If any sort of strategic bombing offensive was to be maintained, one would have to plan for the destruction that one could and did cause. Lord Cherwell's minute was an effort at such planning. In fact, of course, navigational devices were rapidly improved as the war went on, and the bombing of specific military targets was an important part of Britain's total air offensive, receiving top priority at times (before the June 1944 invasion of France, for example) and cutting into the resources allowed for attacks on cities. Today many experts believe that the war might have ended sooner had there been a greater concentration of air power against targets such as the German oil refineries.¹⁵ But the decision to bomb cities was made at a time when victory was not in sight and the specter of defeat ever present. And it was made when no other decision seemed possible if there was to be any sort of military offensive against Nazi Germany.

Bomber Command was the only offensive weapon available to the British in those frightening years, and I expect there is some truth to the notion that it was used simply because it was there. "It was the only force in the West," writes Arthur Harris, chief of Bomber Command from early 1942 until the end of the war, "which could take offensive action . . . against Germany, our only means of getting at the enemy in a way that would hurt at all."¹⁶ Offensive action could have been postponed until (or in hope of) some more favorable time. That is what the war convention would require, and there was also considerable military pressure for postponement. Harris was hard-pressed to keep his Command together

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in the face of repeated calls for tactical air support—which would have been coordinated with ground action largely defensive in character, since the German armies were still advancing everywhere. Sometimes, in his memoirs, he sounds like a bureaucrat defending his function and his office, but obviously he was also defending a certain conception of how the war might best be fought. He did not believe that the weapons he commanded should be used because he commanded them. He believed that the tactical use of bombers could not stop Hitler and that the destruction of cities could. Later in the war, he argued that only the destruction of cities could bring the fighting to a quick conclusion. The first of these arguments, at least, deserves a careful examination. It was apparently accepted by the Prime Minister. “The bombers alone,” Churchill had said as early as September 1940, “provide the means of victory.”¹⁷

The bombers alone—that poses the issue very starkly, and perhaps wrongly, given the disputes over strategy to which I have already referred. Churchill’s statement suggested a certainty to which neither he nor anyone else had any right. But the issue can be put so as to accommodate a degree of skepticism and to permit even the most sophisticated among us to indulge in a common and a morally important fantasy: suppose that I sat in the seat of power and had to decide whether to use Bomber Command (in the only way that it could be used systematically and effectively) against cities. Suppose further that unless the bombers were used in this way, the probability that Germany would eventually be defeated would be radically reduced. It makes no sense at this point to quantify the probabilities; I have no clear notion what they actually were or even how they might be calculated given our present knowledge; nor am I sure how different figures, unless they were very different, would affect the moral argument. But it does seem to me that the more certain a German victory appeared to be in the absence of a bomber offensive, the more justifiable was the decision to launch the offensive. It is not just that such a victory was frightening, but also that it seemed in those years very close; it is not just that it was close, but also that it was so frightening. Here was a supreme emergency, where one might well be required to override the rights of innocent people and shatter the war convention.

Given the view of Nazism that I am assuming, the issue takes this form: should I wager this determinate crime (the killing of innocent people) against that immeasurable evil (a Nazi triumph)?

Obviously, if there is some other way of avoiding the evil or even a reasonable chance of another way, I must wager differently or elsewhere. But I can never hope to be sure; a wager is not an experiment. Even if I wager and win, it is still possible that I was wrong, that my crime was unnecessary to victory. But I can argue that I studied the case as closely as I was able, took the best advice I could find, sought out available alternatives. And if all this is true, and my perception of evil and imminent danger not hysterical or self-serving, then surely I must wager. There is no option; the risk otherwise is too great. My own action is determinate, of course, only as to its direct consequences, while the rule that bars such acts is founded on a conception of rights that transcends all immediate considerations. It arises out of our common history; it holds the key to our common future. But I dare to say that our history will be nullified and our future condemned unless I accept the burdens of criminality here and now.

This is not an easy argument to make, and yet we must resist every effort to make it easier. Many people undoubtedly found some comfort in the fact that the cities being bombed were German and some of the victims Nazis. In effect, they applied the sliding scale and denied or diminished the rights of German civilians so as to deny or diminish the horror of their deaths. This is a tempting procedure, as we can see most clearly if we consider again the bombing of occupied France. Allied fliers killed many Frenchmen, but they did so while bombing what were (or were thought to be) military targets. They did not deliberately aim at the "built-up areas" of French cities. Suppose such a policy had been proposed. I am sure that we would all find the wager more difficult to undertake and defend if, through some strange combination of circumstances, it required the deliberate slaughter of Frenchmen. For we had special commitments to the French; we were fighting on their behalf (and sometimes the bombers were flown by French pilots). But the status of the civilians in the two cases is no different. The theory that distinguishes combatants from noncombatants does not distinguish Allied from enemy noncombatants, at least not with regard to the question of their murder. I suppose it makes sense to say that there were more people in German than in French cities who were responsible (in some fashion) for the evil of Nazism, and we may well be reluctant to extend to them the full range of civilian rights. But even if that reluctance is justified, there is no way for the bombers to search out the right people. And for all the others, terrorism only reiterates the tyranny that the Nazis

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had already established. It assimilates ordinary men and women to their government as if the two really made a totality, and it judges them in a totalitarian way. If one is forced to bomb cities, it seems to me, it is best to acknowledge that one has also been forced to kill the innocent.

Once again, however, I want to set radical limits to the notion of necessity even as I have myself been using it. For the truth is that the supreme emergency passed long before the British bombing reached its crescendo. The greater number by far of the German civilians killed by terror bombing were killed without moral (and probably also without military) reason. The decisive point was made by Churchill in July of 1942:¹⁸

In the days when we were fighting alone, we answered the question: "How are you going to win the war?" by saying: "We will shatter Germany by bombing." Since then the enormous injuries inflicted on the German Army and manpower by the Russians, and the accession of the manpower and munitions of the United States, have rendered other possibilities open.

Surely, then, it was time to stop the bombing of cities and to aim, tactically and strategically, only at legitimate military targets. But that was not Churchill's view: "All the same, it would be a mistake to cast aside our original thought . . . that the severe, ruthless bombing of Germany on an ever-increasing scale will not only cripple her war effort . . . but will create conditions intolerable to the mass of the German population." So the raids continued, culminating in the spring of 1945—when the war was virtually won—in a savage attack on the city of Dresden in which something like 100,000 people were killed.¹⁹ Only then did Churchill have second thoughts. "It seems to me that the moment has come when the question of bombing German cities simply for the sake of increasing the terror, though under other pretexts, should be reviewed . . . The destruction of Dresden remains a serious query against the conduct of Allied bombing."²⁰ Indeed it does, but so does the destruction of Hamburg and Berlin and all the other cities attacked simply for the sake of terror.

The argument used between 1942 and 1945 in defense of terror bombing was utilitarian in character, its emphasis not on victory itself but on the time and price of victory. The city raids, it was claimed by men such as Harris, would end the war sooner than it would otherwise end and, despite the large number of civilian casualties they inflicted, at a lower cost in human life. Assuming this claim to be true (I have already indicated that precisely oppo-

site claims are made by some historians and strategists), it is nevertheless not sufficient to justify the bombing. It is not sufficient, I think, even if we do nothing more than calculate utilities. For such calculations need not be concerned only with the preservation of life. There is much else that we might plausibly want to preserve: the quality of our lives, for example, our civilization and morality, our collective abhorrence of murder, even when it seems, as it always does, to serve some purpose. Then the deliberate slaughter of innocent men and women cannot be justified simply because it saves the lives of other men and women. I suppose it is possible to imagine situations where that last assertion might prove problematic, from a utilitarian perspective, where the number of people involved is small, the proportions are right, the events hidden from the public eye, and so on. Philosophers delight in inventing such cases in order to test out our moral doctrines. But their inventions are somehow put out of our minds by the sheer scale of the calculations necessary in World War II. To kill 278,966 civilians (the number is made up) in order to avoid the deaths of an unknown but probably larger number of civilians and soldiers is surely a fantastic, godlike, frightening, and horrendous act.*

I have said that such acts can probably be ruled out on utilitarian grounds, but it is also true that utilitarianism as it is commonly understood, indeed, as Sidgwick himself understands it, encourages the bizarre accounting that makes them (morally) possible. We can recognize their horror only when we have acknowledged the personality and value of the men and women we destroy in committing them. It is the acknowledgment of rights that puts a stop to such calculations and forces us to realize that the destruction of the innocent, whatever its purposes, is a kind of blasphemy against our deepest moral commitments. (This is true even in a supreme emergency, when we cannot do anything else.) But I want to look at one more case before concluding my argument—a case

* George Orwell has suggested an alternative utilitarian rationale for the bombing of German cities. In a column written for the leftist journal *Tribune* in 1944, he argued that the bombing brought the true character of contemporary combat home to all those people who supported the war, even enjoyed it, only because they never felt its effects. It shattered "the immunity of civilians, one of the things that have made war possible," and so it made war less likely in the future. See *The Collected Essays, Journalism and Letters of George Orwell*, ed. Sonia Orwell and Ian Angus, New York, 1968, Vol. 3, pp. 151–152. Orwell assumes that civilians had really been immune in the past, which is false. In any case, I doubt that his argument would lead anyone to begin bombing cities. It is an apology after the fact, and not a convincing one.

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where the utilitarian accounting, however bizarre, seemed so radically clear-cut to the decision-makers as to leave them, they thought, no choice but to attack the innocent.

The Limits of Calculation

Hiroshima

"They all accepted the 'assignment' and produced The Bomb," Dwight Macdonald wrote in August 1945 of the atomic scientists. "Why?" It is an important question, but Macdonald poses it badly and then gives the wrong answer. "Because they thought of themselves as specialists, technicians, and not as complete men."²¹ In fact, they did not accept the assignment; they sought it out, taking the initiative, urging upon President Roosevelt the critical importance of an American effort to match the work being done in Nazi Germany. And they did this precisely because they were "complete men," many of them European refugees, with an acute sense of what a Nazi victory would mean for their native lands and for all mankind. They were driven by a deep moral anxiety, not (or not most crucially) by any kind of scientific fascination; they were certainly not servile technicians. On the other hand, they were men and women without political power or following, and once their own work was done, they could not control its use. The discovery in November 1944 that German scientists had made little progress ended their own supreme emergency, but it did not end the program they had helped to launch. "If I had known that the Germans would not succeed in constructing the atom bomb," Albert Einstein said, "I would never have lifted a finger."²² By the time he found that out, however, the scientists had largely finished their work; now indeed technicians were in charge, and the politicians in charge of them. And in the event, the bomb was not used against Germany (or to deter its use by Hitler, which is what men like Einstein had in mind), but against the Japanese, who had never posed such a threat to peace and freedom as the Nazis had.*

* In his novel *The New Men*, C. P. Snow describes the discussions among atomic scientists as to whether or not the bomb should be used. Some of them, his narrator says, answered that question with "an absolute no," feeling that if the weapon were used to kill hundreds of thousands of innocent people, "neither science nor

Still, it was an important feature of the American decision that the President and his advisors believed the Japanese to be fighting an aggressive war and, moreover, to be fighting it unjustly. Thus Truman's address to the American people on August 12, 1945:

We have used [the bomb] against those who attacked us without warning at Pearl Harbor, against those who have starved and beaten and executed American prisoners of war, against those who have abandoned all pretense of obeying international laws of warfare. We have used it in order to shorten the agony of war . . .

Here again, the sliding scale is being used to open the way for utilitarian calculations. The Japanese have forfeited (some of) their rights, and so they cannot complain about Hiroshima so long as the destruction of the city actually does, or could reasonably be expected to, shorten the agony of war. But had the Japanese exploded an atomic bomb over an American city, killing tens of thousands of civilians and thereby shortening the agony of war, the action would clearly have been a crime, one more for Truman's list. This distinction is only plausible, however, if one renders a judgment not only against the leaders of Japan but also against the ordinary people of Hiroshima and insists at the same time that no similar judgment is possible against the people of San Francisco, say, or Denver. I can find, as I have said before, no way of defending such a procedure. How did the people of Hiroshima forfeit their rights? Perhaps their taxes paid for some of the ships and planes used in the attack on Pearl Harbor; perhaps they sent their sons into the navy and air force with prayers for their success; perhaps they celebrated the actual event, after being told that their country had won a great victory in the face of an imminent American threat. Surely there is nothing here that makes these people liable to direct attack. (It is worth noting, though the fact is not relevant in judging the Hiroshima decision, that the raid on Pearl Harbor was directed entirely against naval and army installations: only a few stray bombs fell on the city of Honolulu.)²³

But if Truman's argument on August 12 was weak, there was a worse one underlying it. He did not intend to apply the sliding scale with any precision, for he seems to have believed that, given

the civilization of which science is bone and fibre, would be free from guilt again." But the more common view was the one I have been defending: "Many, probably the majority, gave a conditional no with much the same feeling behind it; but if there were no other way of saving the war against Hitler, they would be prepared to drop the bomb." *The New Men*, New York, 1954, p. 177 (Snow's emphasis).

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Japanese aggression, the Americans could do anything at all to win (and shorten the agony of war). Along with most of his advisors, he accepted the “war is hell” doctrine; it is a constant allusion in defenses of the Hiroshima decision. Thus Henry Stimson:²⁴

As I look back over the five years of my service as Secretary of War, I see too many stern and heartrending decisions to be willing to pretend that war is anything else but what it is. The face of war is the face of death; death is an inevitable part of every order that a wartime leader gives.

And James Byrnes, Truman’s friend and his Secretary of State:²⁵

. . . war remains what General Sherman said it was.

And Arthur Compton, chief scientific advisor to the government:²⁶

When one thinks of the mounted archers of Ghengiz Khan . . . the Thirty Years War . . . the millions of Chinese who died during the Japanese invasion . . . the mass destruction of western Russia . . . one realizes that in whatever manner it is fought, war is precisely what General Sherman called it.

And Truman himself:²⁷

Let us not become so preoccupied with weapons that we lose sight of the fact that war itself is the real villain.

War itself is to blame, but also the men who begin it . . . while those who fight justly merely participate in the hell of war, choicelessly, and there are no moral decisions for which they can be called to account. This is not, or not necessarily, an immoral doctrine, but it is radically one-sided; it evades the tension between *jus ad bellum* and *jus in bello*; it undercuts the need for hard judgments; it relaxes our sense of moral restraint. When he was choosing a target for the first bomb, Truman reports, he asked Stimson which Japanese cities were “devoted exclusively to war production.”²⁸ The question was reflexive; Truman did not want to violate the “laws of war.” But it wasn’t serious. Which American cities were devoted exclusively to war production? It is possible to ask such questions only when the answer doesn’t matter. If war is hell however it is fought, then what difference can it make how we fight it? And if war itself is the villain, then what risks do we run (aside from the strategic risks) when we make decisions? The Japanese, who began the war, can also end it; only they can end it, and all we can do is fight it, enduring what Truman called “the daily tragedy of bitter war.” I don’t doubt that that was really Truman’s view; it was not a matter

of convenience but of conviction. But it is a distorted view. It mistakes the actual hellishness of war, which is particular in character and open to precise definition, for the limitless pains of religious mythology. The pains of war are limitless only if we make them so—only if we move, as Truman did, beyond the limits that we and others have established. Sometimes, I think, we have to do that, but not all the time. Now we must ask whether it was necessary to do it in 1945.

The only possible defense of the Hiroshima attack is a utilitarian calculation made without the sliding scale, a calculation made, then, where there was no room for it, a claim to override the rules of war and the rights of Japanese civilians. I want to state this argument as strongly as I can. In 1945, American policy was fixed on the demand for the unconditional surrender of Japan. The Japanese had by that time lost the war, but they were by no means ready to accept this demand. The leaders of their armed forces expected an invasion of the Japanese main islands and were preparing for a last-ditch resistance. They had over two million soldiers available for the fighting, and they believed that they could make the invasion so costly that the Americans would agree to a negotiated peace. Truman's military advisors also believed that the costs would be high, though the public record does not show that they ever recommended negotiations. They thought that the war might continue late into 1946 and that there would be as many as a million additional American casualties. Japanese losses would be much higher. The capture of Okinawa in a battle lasting from April to June of 1945 had cost almost 80,000 American casualties, while virtually the entire Japanese garrison of 120,000 men had been killed (only 10,600 prisoners were taken).²⁹ If the main islands were defended with a similar ferocity, hundreds of thousands, perhaps millions, of Japanese soldiers would die. Meanwhile, the fighting would continue in China and in Manchuria, where a Russian attack was soon due. And the bombing of Japan would also continue, and perhaps intensify, with casualty rates no different from those anticipated from the atomic attack. For the Americans had adopted in Japan the British policy of terrorism: a massive incendiary raid on Tokyo early in March 1945 had set off a firestorm and killed an estimated 100,000 people. Against all this was set, in the minds of American decision-makers, the impact of the atomic bomb—not materially more damaging but psychologically more frightening, and holding out the promise, perhaps, of a quick end to the war. "To avert a vast, indefinite butchery . . . at the cost

Supreme Emergency

of a few explosions,” wrote Churchill in support of Truman’s decision, “seemed, after all our toils and perils, a miracle of deliverance.”³⁰

“A vast indefinite butchery” involving quite probably the deaths of several million people: surely this is a great evil, and if it was imminent, one could reasonably argue that extreme measures might be warranted to avert it. Secretary of War Stimson thought it was the sort of case I have already described, where one had to wager; there was no option. “No man, in our position and subject to our responsibilities, holding in his hand a weapon of such possibilities for . . . saving those lives, could have failed to use it.”³¹ This is by no means an incomprehensible or, on the surface at least, an outrageous argument. But it is not the same as the argument I suggested in the case of Britain in 1940. It does not have the form: if we don’t do *x* (bomb cities), they will do *y* (win the war, establish tyrannical rule, slaughter their opponents). What Stimson argued is very different. Given the actual policy of the U.S. government, it amounts to this: if we don’t do *x*, we will do *y*. The two atomic bombs caused “many casualties,” James Byrnes admitted, “but not nearly so many as there would have been had our air force continued to drop incendiary bombs on Japan’s cities.”³² Our purpose, then, was not to avert a “butchery” that someone else was threatening, but one that we were threatening, and had already begun to carry out. Now, what great evil, what supreme emergency, justified the incendiary attacks on Japanese cities?

Even if we had been fighting in strict accordance with the war convention, the continuation of the struggle was not something forced upon us. It had to do with our war aims. The military estimate of casualties was based not only on the belief that the Japanese would fight almost to the last man, but also on the assumption that the Americans would accept nothing less than unconditional surrender. The war aims of the American government required either an invasion of the main islands, with enormous losses of American and Japanese soldiers and of Japanese civilians trapped in the war zones, or the use of the atomic bomb. Given that choice, one might well reconsider those aims. Even if we assume that unconditional surrender was morally desirable because of the character of Japanese militarism, it might still be morally undesirable because of the human costs it entailed. But I would suggest a stronger argument than this. The Japanese case is sufficiently different from the German so that unconditional surrender should never have been asked. Japan’s rulers were engaged in a

more ordinary sort of military expansion, and all that was morally required was that they be defeated, not that they be conquered and totally overthrown. Some restraint upon their war-making power might be justified, but their domestic authority was a matter of concern only to the Japanese people. In any case, if killing millions (or many thousands) of men and women was militarily necessary for their conquest and overthrow, then it was morally necessary—in order not to kill those people—to settle for something less. I have made this argument before (in chapter 7); here is a further example of its practical application. If people have a right not to be forced to fight, they also have a right not to be forced to continue fighting beyond the point when the war might justly be concluded. Beyond that point, there can be no supreme emergencies, no arguments about military necessity, no cost-accounting in human lives. To press the war further than that is to re-commit the crime of aggression. In the summer of 1945, the victorious Americans owed the Japanese people an experiment in negotiation. To use the atomic bomb, to kill and terrorize civilians, without even attempting such an experiment, was a double crime.³⁸

These, then are the limits of the realm of necessity. Utilitarian calculation can force us to violate the rules of war only when we are face-to-face not merely with defeat but with a defeat likely to bring disaster to a political community. But these calculations have no similar effects when what is at stake is only the speed or the scope of victory. They are relevant only to the conflict between winning and fighting well, not to the internal problems of combat itself. Whenever that conflict is absent, calculation is stopped short by the rules of war and the rights they are designed to protect. Confronted by those rights, we are not to calculate consequences, or figure relative risks, or compute probable casualties, but simply to stop short and turn aside.